

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA**

WOODY NORA	*	CIVIL ACTION NUMBER: 2:25-cv-01015
	*	
	*	
VERSUS	*	JUDGE SUSIE MORGAN
	*	
	*	
M & A TRANSPORT, ET AL.	*	MAGISTRATE JUDGE MICHAEL
	*	NORTH

AMENDED COMPLAINT

NOW INTO COURT, through undersigned counsel, comes Petitioner, **WOODY NORA**, who respectfully supplements and amends his Complaint in accordance with the Court's May 30, 2025 Status Conference as follows:

I.

To amend Paragraph 1 of the Original Complaint as follows:

1.

PARTIES

- A. **JONATHAN O'BRIEN**, a person of the full age of majority who, on information and belief is domiciled at 215 Murray Ln, Export, Pennsylvania 15632; and
- B. **LLS LEASING, INC.**, a foreign business licensed to, and doing, business in the State of Pennsylvania, whose registered service address is RR1, Box 37M, Avonmore, PA 15618;
- C. **M & A TRANSPORT INC.**, a foreign business licensed to, and doing, business in the State of Pennsylvania, whose registered service address is 1191 Sugar Hollow Road, Apollo, PA 15613;
- D. **MIKE STIVASON**, a person of the full age of majority, who upon information and belief, can be served personally at RR 1 Box 37M, Avonmore, PA 15618;

- E. **STIVASON AND SON'S TRUCKING, INC.**, a domestic company licensed to, and doing, business in the State of Pennsylvania, who is to be served through its Registered Agent for Service, Curtis F. Stivason, RR 1, Box 37M, Avonmore, PA 15618;
- F. **CURTIS STIVASON**, a person of the full age of majority, who upon information and belief, can be served RR 1, Box 37M, Avonmore, PA 15618;
- G. **LINDA STIVASON**, a person of full age of majority who upon information and belief, who can be served personally at 1191 Sugar Hollow Road, Apollo, PA 15613;
- H. **WEST UA TRANSPORT, INC.**, a foreign business licensed to, and doing, business in the State of Pennsylvania, who is to be served through its registered service address at 15077 Totten Place, Shelby Township, MI 48315.

II.

To amend and supplement Paragraph 7 of the Original Complaint as follows:

7.

At the time of the accident, **JONATHAN O'BRIEN** was in the course and scope of his employment with **M & A TRANSPORT, INC.** and/or **LLS LEASING, INC.** and/or **MIKE STIVISON**. Mr. O'Brien was hauling concrete barriers for an unknown company.

III.

To amend and supplement Paragraph 7A as follows:

7A.

At the time of the accident, Petitioner was in the course and scope of his employment with **WEST UA TRANSPORT**, a Michigan based company, operating a 2023 Volvo VNL760 (VIN # 4V4BC9EH3PN337134), bearing Michigan license plate No. RC13996 and attached Stoughton trailer (VIN # 1DW1A5322NSA71639), bearing Michigan license plate No. E370167.

IV.

To supplement Paragraph 7B as follows:

7B.

Upon information and belief, **LLS LEASING, INC.** is a corporation affiliated with **STIVASON AND SON'S**, who is owned and operated by **LINDA STIVASON** and **CURTIS STIVASON**.

IV.

To OMIT Paragraphs 24 – 27 of the Original Complaint

V.

To OMIT Paragraphs 32 – 80 of the Original Complaint.

VI.

To amend Paragraph 83 of the Original Complaint as follows:

83.

Petitioner alleges that, on information and belief, a policy of liability insurance to Defendant, **LLS LEASING, INC.** and/or a 2014 Freightliner, VIN # 3ALXFBCG5FDFZ7977, bearing Pennsylvania license plate, AG64008 and/or a Reitnouer semi-trailer, VIN# 1RNF45A275R010908 bearing tag number PT899R1, which policy covered such acts of negligence of Defendant, **JONATHAN O'BRIEN** and said policy was in full force and effect on the date and at the time of the accident herein sued upon.

VII.

To amend Paragraph 84 of the Original Complaint as follows:

84.

Petitioner alleges that, on information and belief, a policy of liability insurance to Defendant, **M&A TRANSPORT, INC.** and/or a 2014 Freightliner, VIN # 3ALXFBCG5FDFZ7977, bearing Pennsylvania license plate, AG64008 and/or a Reitnouer semi-trailer, VIN# 1RNF45A275R010908 bearing tag number PT899R1, which policy covered such acts of negligence of Defendant, **JONATHAN O'BRIEN** and said policy was in full force and effect on the date and at the time of the accident herein sued upon.

VIII.

To OMIT Paragraphs 85-87.

IX.

To amend Paragraph 88 of the Original Complaint to read as follows:

88.

Petitioner alleges that, on information and belief, a policy of liability insurance to Defendant, **STIVASON AND SON'S** and/or a 2014 Freightliner, VIN # 3ALXFBCG5FDFZ7977, bearing Pennsylvania license plate, AG64008 and/or a Reitnouer semi-trailer, VIN# 1RNF45A275R010908 bearing tag number PT899R1, which policy covered such acts of negligence of Defendant, **JONATHAN O'BRIEN** and **LLS LEASING, LLC** and said policy was in full force and effect on the date and at the time of the accident herein sued upon.

X.

To supplement Paragraph 88a of the Original Complaint as follows:

Petitioner alleges that, upon information and belief, at the time of the accident, there was in full force and effect a policy of uninsured/underinsured motorist (UM/UIM) insurance issued to Defendant, **WEST UA TRANSPORT**, and/or covering the 2023 Volvo VNL760 (VIN #

4V4BC9EH3PN337134) bearing Michigan license plate No. RC13996 and attached Stoughton trailer (VIN # 1DW1A5322NSA71639) bearing Michigan license plate No. E370167. Said policy provided UM/UIM coverage applicable to the negligent acts of Defendant, **JONATHAN O'BRIEN**, and extends coverage to **WOODY NORA** for damages sustained in the subject accident to the extent the available liability insurance is insufficient to fully compensate him for his injuries and losses.

XI.

To amend Paragraph 89 of the Original Complaint to read as follows:

Petitioner alleges that, on information and belief, a policy of liability insurance to Defendants, **CURTIS STIVASON** and **LINDA STIVASON** and/or a 2014 Freightliner, VIN # 3ALXFBCG5FDFZ7977, bearing Pennsylvania license plate, AG64008 and/or a Reitnouer semi-trailer, VIN# 1RNF45A275R010908 bearing tag number PT899R1, which policy covered such acts of negligence of Defendant, **JONATHAN O'BRIEN** and **STIVASON SON'S** and said policy was in full force and effect on the date and at the time of the accident herein sued upon.

XII.

To OMIT Paragraphs 90-111.

XIII.

To amend the WHEREFORE Paragraph as follows:

WHEREFORE, premises considered, Petitioner prays that a copy of this petition be served upon the Defendants in the manner prescribed by law and that, after due proceedings are had and after all legal delays, there be judgment in favor of Petitioner, Woody Nora, and against Defendants, **M&A TRANSPORT, INC., LLS LEASING, MIKE STIVASON, STIVASON**

AND SON'S TRUCKING, INC., CURTIS STIVASON, LINDA STIVASON, WEST UA TRANSPORT and **JONATHAN O'BRIEN**, individually, jointly and in solido, for such damages as are reasonable in the premises, together with legal interest thereon, from date of judicial demand until paid, for all costs of these proceedings and for all other further relief to which Petitioner may be entitled.

Petitioner further reserves the right for a trial by jury and prays for all general and equitable relief.

Respectfully submitted,
WRIGHT GRAY HARRIS, LLC

/s/ Laci N. Hamilton
ERIC A. WRIGHT, LA Bar No. 26149
LACI N. HAMILTON, LA Bar No. 36771
201 St. Charles Avenue, Suite 2710
New Orleans, LA 70170
PH: (504) 500-0000
eric@wrightgray.com
l.hamilton@wrightgray.com
Service Email: service@wrightgray.com
Attorneys for Plaintiff, Woody Nora

CERTIFICATE OF SERVICE

I do hereby certify that I have served a copy of the foregoing pleading on counsel for all parties to this proceeding, by filing this pleading electronically using the United States District Court for the Eastern District of Louisiana ECF system, on this 27th day of June, 2025.

/s/ Laci N. Hamilton
LACI N. HAMILTON